

Powers and Responsibilities of Prime Minister and President of Pakistan

Organizational Structure of Pakistan's government according to constitution 1973

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Introduction:

The constitution of 1973 established Pakistan as a federal Parliamentary Republic. Under this system, the structure of government is designed to ensure a balance of power while leaning executive control toward the chosen representatives of the public. The Constitution explicitly divides governance into a ceremonial Head of State (the president) and an empowered Head of Government (the Prime Minister), operating alongside a clear tri-partite organizational framework to manage the country's state affairs.

Power of President of Pakistan (41-49):

The President serves as the Head of State and represents the unity of the Republic (Article 41). Following the 18th Amendment, the role is primarily ceremonial, and the President must act on the binding advice of the Prime Minister, though crucial constitutional responsibilities remain:

Executive and Appointment Powers:

- **Symbolic Executive Authority:** All executive actions of the Federal Government are formally taken in the name of President (Article 49).

- **Key Appointments:** Appoints Provincial Governors, the chief Election Commissioner and top military leadership (Chief of Army Staff, etc.) on the advice of the Prime Minister.

Legislative and Judicial Roles:

- **Assent to Bills:** Signs bills passed by the Parliament into law. The President can return a non-money bill for reconsideration once.
- **Ordinance Promulgation:** Can issue temporary ordinances (valid for 120 days) when the Parliament is not in session.
- **Power of Pardon:** Holds the constitutional power to grant pardons, reprieves, or commutes sentences passed by any court (Article 45).

Operational Constraints and Impeachment:

- **Bound by Advice:** Under article 48, the President must act on the advice of the Prime Minister or Cabinet.
- **Removal / Impeachment:** Can be removed from office under Article 47 on grounds of physical or mental incapacity, or impeached for gross misconduct or violation of Constitution via two-thirds majority in a joint sitting of Parliament.

Powers of Prime Minister (90 onwards):

The Prime Minister is The Chief Executive of the Federation (Article 90) and The practical leader of country, wielding actual executive authority.

Executive and Cabinet Leadership:

- Head of Federal Government: Exercises the executive authority of the Federation directly or through federal Ministers.
- Forming the Cabinet: chooses federal ministers and ministries of state to form The Cabinet (Article 91). The Prime Minister leads and can dissolve or reshuffle this Cabinet at will.

Legislative Influence:

- Leader of House: Guides the legislative agenda in the National Assembly.
- Dissolution of Assembly: Holds the sole authority to advise the President to dissolve The National Assembly (Article 58). If advised, The assembly stands dissolved within 48 hours automatically.

Policy and Strategic Decision Making:

- National Security and Foreign Policy: Directs the country's foreign relations, economic policies and defense strategies.

- Institutional Chairs: Heads key constitutional bodies like the Council of Common Interests (CCI) and the National Economic Council (NEC).

Organizational Structure of The Government of Pakistan:

The 1973 Constitution sets up a clear horizontal division of power among three principal organs; the Legislature, Executive, and Judiciary.

Legislature: (Majlis-e-Shoora)

Composition: A bicameral parliament consisting of two houses; the National Assembly (Lower House) and the Senate (Upper House), alongside The President.

Members:

National Assembly: Members are elected directly by the public based on population allocated seats, along with reserved seats for women and minorities.

Senate: comprises equal representation from all four provinces, elected indirectly by provincial assemblies, plus members from the federal capital.

Duration: The National Assembly serves a term of 5 years (unless dissolved early). The Senate is a permanent body where senators serve 6 year terms, with half of them retiring every 3 years.

Roles: Passing federal laws, debating the national policies, voting on the federal budget (sole right of the National Assembly) and keeping checks on the executive branch.

Executive:

composition: composed of the Prime Minister, the Federal Cabinet, and the civil bureaucracies (ministries and divisions).

Members: The Prime Minister must be a Muslim member of the National Assembly. The cabinet ministries are selected from either the National Assembly or the Senate (though Senate members cannot exceed one fourth of the total cabinet).

Duration: Tied to the parliamentary term;

holds office as long as they command the confidence of the majority of the National Assembly (up to 5 years).

Roles: Enforcing laws passed by the legislature, running day to day state administration, handling government finances and safeguarding national security.

Judiciary:

composition: An independent, hierarchical structure consisting of the Supreme Court of Pakistan (apex court), The Federal Shariat Court and five High Courts (one for each province and one for Islamabad).

Members: The Chief Justice of Pakistan and other judges of the Supreme and High Courts. Judges are recommended by a Judicial Commission and approved by a Parliamentary Committee.

Duration: Not bound by political terms. Supreme Court judges hold office until the retirement age of 65, and High Court judges until 62, unless removed earlier by the Supreme Judicial Council for misconduct or incapacity.

Roles: Interpreting the Constitution, resolving

disputes between federal and provincial governments, enforcing fundamental rights, and reviewing the legality of administrative and legislative actions.

Conclusion:

The 1973 constitution successfully creates a balanced division of authority through its clear organizational layout. By considering real executive power within the Prime Minister and the Cabinet, who remain directly answerable to the elected legislature, it preserves a true parliamentary spirit. Concurrently, assigning a unifying, ceremonial role to the President and ensuring a completely independent Judiciary help guard the federal framework and protect the rule of law across the state.